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Beyond the Label: Food Safety, Celebrity Endorsements and the Fight for Consumer Health



The article examines how food labels, misleading advertisements and celebrity endorsements influence consumer choices and public health. It highlights the role of food-safety regulation and accountability in protecting consumers.

Beyond the Label: Food Safety, Celebrity Endorsements and the Fight for Consumer Health

Syllabus areas:

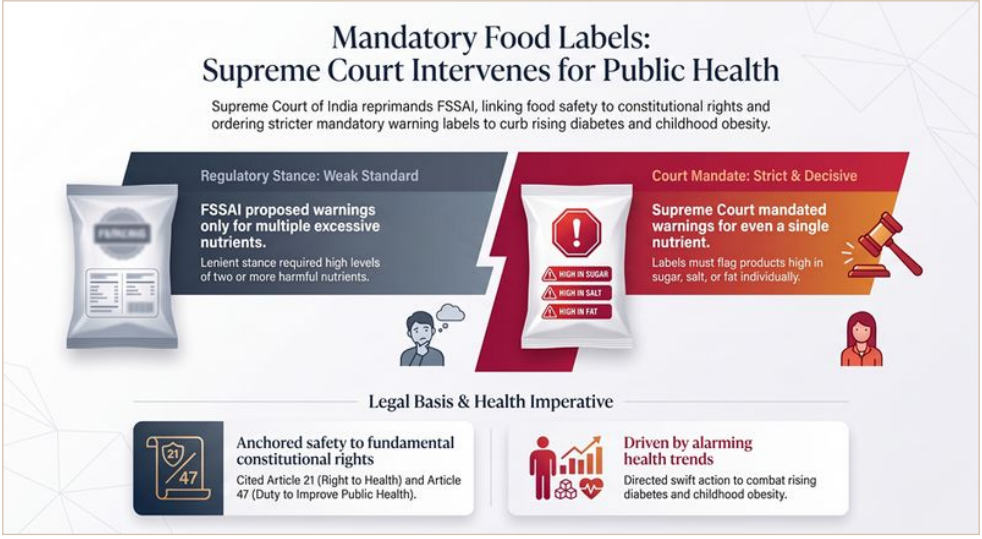
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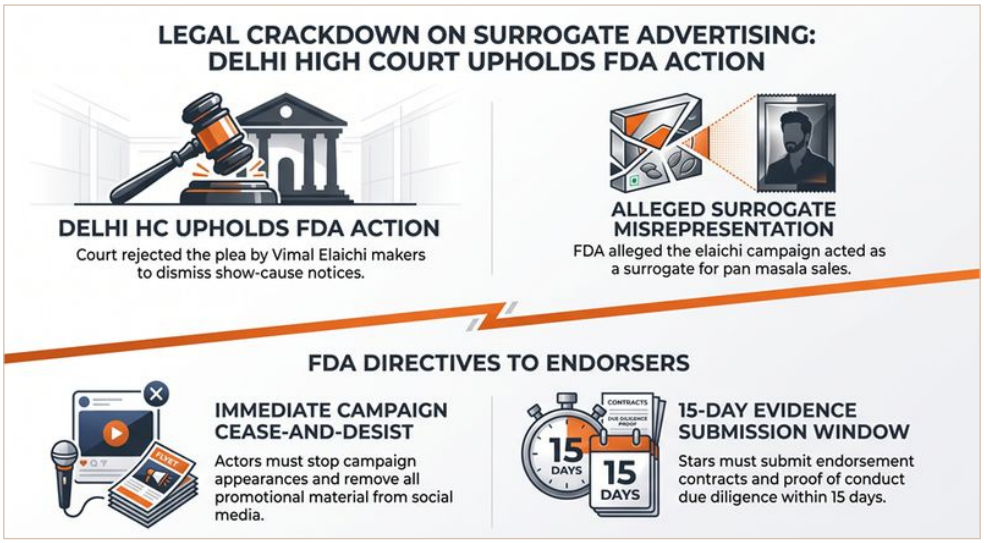
In an important intervention for promoting nutrition literacy, the Supreme Court of India strongly criticised the Food Safety and Standards Authority of India (FSSAI) over prolonged delays in mandating front-of-pack warning labels (FOPL) for packaged foods high in sugar, salt and saturated fat. Hearing a public interest litigation by the NGO J3S and Our Health Society, Justices J B Pardiwala and K Vinod Chandran had rebuked the regulator, remarking, “If you can’t do it, we will,” and questioned the industry pressure facing the FSSAI. The Court tied food safety directly to Article 21 (right to health flowing from right to life) and Article 47 (State’s duty to improve public health), citing the severe rise in diseases like diabetes and childhood obesity.

The FSSAI had initially adopted a lenient stance, stating that warning labels would be required only when the marketed food products were deemed to have high levels of two or more of the nutrients sugar, salt and saturated fat, which should not be consumed in excess. The petitioners rightly argued that this would let off the hook products that are excessively high in only one of these nutrients, as they would still pose a health risk. This position was supported by Indian and global experts as well as the National Institute of Nutrition, which is part of the Indian Council of Medical Research. The court agreed with the petitioners and directed FSSAI to modify its stance on the FOPL warnings.



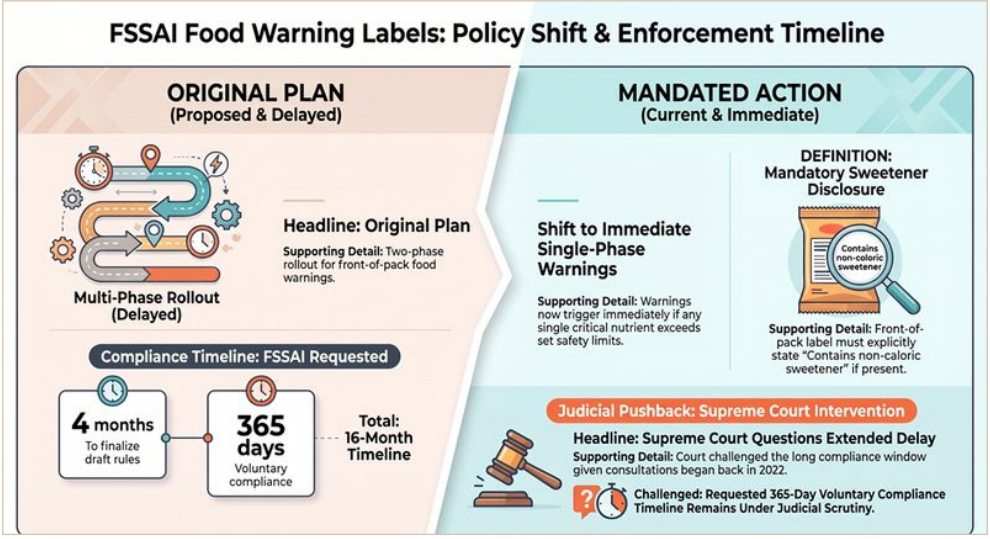
In another victory for the consumers' right to be protected against misleading advertisements, the Delhi High Court recently rejected a plea by the makers of Vimal Elaichi to quash a show-cause notice issued to their brand ambassadors Shah Rukh Khan, Ajay Devgn and Tiger Shroff by the Food and Drugs Administration (FDA) of Maharashtra. The FDA alleged misrepresentation of the product, amounting to be a surrogate for the pan masala product which is sold in the state.

The Maharashtra FDA directed the actors to immediately cease appearing in the campaign and remove all related promotional material from their personal social media platform. The stars were given 15 days to hand over evidence of endorsement contracts and evidence of the due diligence they had conducted before signing the deal. The FDA directed the actors to immediately cease appearing in the campaign and remove all related promotional material from their personal social media platforms.



FSSAI had also earlier stated that it would introduce the warnings in two phases, with the single-nutrient warning label after providing sufficient time for the industry to re-formulate its products. That would mean the products sold in the markets with harmful levels of a single nutrient would carry no warnings to the consumer for a long time. Following the court's stern directive, the FSSAI submitted that it would proceed with single-phase enforcement where warnings will apply immediately if any single of the critical nutrient crosses the defined high limit, rather than rolling out in delayed stages. Any food or beverage containing non-caloric sweeteners must explicitly display the front-of-pack statement: "Contains non-caloric sweetener".

The FSSAI sought a four-month window to finalise draft regulations, followed by a voluntary implementation period of 365 days for businesses to exhaust existing packaging stock. On September 28, the Supreme Court asked why such a long time was needed for voluntary compliance and fresh stakeholder consultation given that the process had begun in 2022.



In August this year, the FSSAI too issued a countrywide warning to content creators, social media influencers and celebrities to desist from endorsing food products with unverified, exaggerated or scientifically-unproven health claims. As food products are being marketed with claims such as “boosts immunity” or “aids weight loss”, such a warning is timely.

During the 72nd National Film Awards in late September, President Droupadi Murmu urged the Indian film community to refrain from endorsing substances and ultra-processed products that damage public health, stating that a “true star spreads light, not darkness”. This advice, from India’s first citizen, must be heeded. The government’s chief economic advisor has also been drawing attention to unhealthy food products adversely impacting people’s health with consequent economic impact.

The behaviours of daily living extend from the diets and physical activity to sleep patterns and consumption of addictive substances like tobacco and alcohol. These behaviours affect many aspects of health and well-being. The alarming rise of chronic non-communicable diseases — such as cardiovascular diseases, cancers, diabetes and obesity—is mainly driven by unhealthy behaviour.

Health behaviours are usually steered by health beliefs that are based on information gathered from many sources, only some of which are reliable in terms of accuracy. Today’s behaviours, like diet and exercise, determine tomorrow’s risk factors, like obesity and high blood pressure. Today’s risk factors lead up to tomorrow’s diseases which can cause death or disability, so it is essential that people’s health beliefs and behaviours are guided by accurate and undistorted information on the basis of which they can protect, preserve and promote health of their families.



Courtesy – New Indian express

Class on ultra – processed food:

Handout on Class: